

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

----- X  
BIANCA ROBERSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD OFFICER  
MARTINEZ CABRERA, Shield No. 4289, NYPD  
POLICE OFFICERS JOHN DOES NUMBERS ONE  
THROUGH TEN,

Defendants.  
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**SUMMONS**

Index No.:

The Basis of Venue is:  
Location of Incident

Plaintiff designates Bronx  
County as the place of trial.

**To the above named Defendants:**

**You are hereby summoned** to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York  
December 17, 2021

Yours, etc.

*Cary London*  
Cary London, Esq.  
Shulman-Hill, PLLC  
*Attorneys for Plaintiff*  
1 State Street Plaza  
15<sup>th</sup> Floor  
New York, New York 10004  
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007  
OFFICER MARTINEZ CABRERA, 40 PCT, 257 Alexander Ave, Bronx, NY 10454

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**INDEX NO.:**

VERIFIED COMPLAINT

**JURY TRIAL DEMANDED**

Plaintiff Bianca Roberson, by her attorneys, Shulman-Hill, PLLC, as and for her Verified Complaint herein, alleges upon information and belief as follows:

**PRELIMINARY STATEMENT**

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On April 10, 2021, at approximately 4:00 p.m., Plaintiff Bianca Roberson, while lawfully in the vicinity of 643 Wales Avenue, County of Bronx, New York, was subject to an unlawful arrest, detention, assault, battery and excessive use of force by defendant Police Officers. In doing so, defendant Police Officers caused Plaintiff to have a seizure and other serious physical injury necessitating hospital treatment. Plaintiff was deprived of her constitutional, common law and statutory rights when the individual defendants unlawfully stopped, detained, assaulted, battered and subjected her to excessive force in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

**PARTIES**

2. Plaintiff Bianca Roberson is a resident of the state of New York.
3. New York City Police Officer Martinez Cabrera is and was at all times relevant herein an Officer with the New York City Police Department.
4. New York City Police Officer Martinez Cabrera is being sued in their individual and official capacity.

5. Currently and at all times relevant herein, New York City Police Officer Martinez Cabrera was assigned to the 40th Police Precinct of the NYPD.

6. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

7. New York City Police Officers John Does #1-10 are being sued in their individual and official capacities.

8. Currently and at all times relevant herein, New York City Police Officers John Does #1-10 were assigned to the 40th Police Precinct of the NYPD.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. Plaintiff in furtherance of her causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

12. In accordance with New York State law and General Municipal Law Section 50, Plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on June 17, 2021.

13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

### STATEMENT OF FACTS

16. On April 10, 2021, at approximately 5:00 p.m., Plaintiff was present in the vicinity of 643 Wales Avenue, County of Bronx, State of New York, when the defendant Police Officers unlawfully arrested Plaintiff without legal justification and using excessive force.

17. Plaintiff was approached by several uniform defendant police officers who accused Plaintiff of violating an order of protection.

18. Plaintiff explained to the defendant officers that the only order of protection that existed was a limited order of protection and that she had not violated it.

19. Despite being notified of these facts and without engaging in any further investigation, defendant police officers grabbed Plaintiff and began to arrest her.

20. Plaintiff was knocked to the ground where defendant police officers continued to forcefully grab her and strike her in the body.

21. Defendant police officers also involved the Plaintiff's former romantic partner in the arrest, and he was there grabbing and shoving at Plaintiff at the same time as defendant officers.

22. After a few minutes of being assaulted while laying on the ground, Plaintiff had suffered abrasions, lacerations and bruises on her elbows, knees, and various other parts of her body.

23. At this point, Plaintiff suffered a tonic-clonic seizure.

24. Plaintiff was arrested and transported to Lincoln Hospital for treatment, where she remained in police custody.

25. After approximately 30 total hours in police custody, Plaintiff was taken straight to Central Bookings.

26. At Central Bookings, Plaintiff was released without any charges as the Bronx District Attorney's Office had declined to prosecute Plaintiff.

27. The Bronx District Attorney's Office declined to prosecute Plaintiff as no crime had in fact been committed.

28. A limited order of protection was in place, not a full order of protection, like the Plaintiff told the arresting officers.

29. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

30. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

31. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched, and unlawfully detained.

32. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff.

33. The unlawful assault, battery, and use of excessive force by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

### FIRST CAUSE OF ACTION

#### **Negligence**

34. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

35. Defendants owed a duty of care to Plaintiff.

36. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers was unintentionally caused and that the force used by the defendants against her was unintentional, then the defendants breached that duty of care by hitting her body and causing her to have a seizure.

37. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

38. All of the foregoing occurred without any fault or provocation by Plaintiff.

39. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

40. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

41. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

**SECOND CAUSE OF ACTION**  
**Unlawful Stop, Question, and Search**

42. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

43. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

44. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

45. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

**THIRD CAUSE OF ACTION**  
**Violation of Fourth and Fourteenth Amendment Rights:**  
**Unlawful Seizure and Deprivation of Liberty**

48. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

49. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

50. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

**FOURTH CAUSE OF ACTION**  
**False Imprisonment**

51. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

52. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

53. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York and the United States Constitution.

54. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

55. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

56. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

#### **FIFTH CAUSE OF ACTION**

##### **Violation of Plaintiff's Fourth And Fourteenth Amendment Rights: Excessive Force**

57. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

58. The use of excessive force by defendants by, amongst other things, roughly handcuffing, grabbing and throwing Plaintiff onto the ground, hitting her body and causing her to have a seizure, constituted objectively unreasonable physical seizures of Plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

59. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

#### **SIXTH CAUSE OF ACTION**

##### **Assault**

60. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

61. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

62. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

65. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

### SEVENTH CAUSE OF ACTION

#### **Battery**

66. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

67. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, by handcuffing, grabbing and throwing Plaintiff onto the ground, hitting her body and causing her to have a seizure, without her consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

68. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

69. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

70. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.



71. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

**EIGHTH CAUSE OF ACTION**  
**Negligent Infliction of Emotional Distress**

72. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

73. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

74. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

75. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

78. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

**NINTH CAUSE OF ACTION**  
**Negligent Hiring, Retention, Training and Supervision**

79. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

80. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

81. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

### **TENTH CAUSE OF ACTION**

#### **Failure to Intervene**

82. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

83. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

84. Defendants failed to intervene to prevent the unlawful conduct described herein.

85. As a result of the foregoing, Plaintiff's suffered serious permanent injury, her liberty was restricted for an extended period of time, she was put in fear of her safety, and she was humiliated and subject to other physical constraints.

86. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

88. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

89. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

### **ELEVENTH CAUSE OF ACTION**

#### **Malicious Prosecution**

90. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

91. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

92. Defendants commenced and continued a criminal proceeding against Plaintiff.

93. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.

94. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

### JURY DEMAND

95. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

### PRAYER FOR RELIEF

**WHEREFORE**, Plaintiff Bianca Roberson demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York  
December 17, 2021

By: Cary London  
Cary London, Esq.  
Shulman-Hill, PLLC  
*Attorneys for Plaintiff*  
1 State Street Plaza  
15<sup>th</sup> Floor  
New York, New York 10004  
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007  
OFFICER MARTINEZ CABRERA, 40 PCT, 257 Alexander Ave, Bronx, NY 10454

ATTORNEY'S VERIFICATION

**CARY LONDON**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York  
December 17, 2021

  
\_\_\_\_\_  
CARY LONDON